



Office of Judicial Records - Civil
First Judicial District of Pennsylvania

Checklist for Motion for Alternative Service

What is a Motion for Alternative Service?

A *Motion for Alternative Service* is a document that you can file with the Court when you are unable to meet the requirements of Rules 400.1 and 402 of the Pennsylvania Rules of Civil Procedure to serve paperwork to the other parties in your case. A *Motion for Alternative Service* allows you to ask the court for special permission to serve paperwork to the other parties in your case in a different way than what is required under those rules. (See Pa.R.C.P. 430).

What should I include in a Motion for Alternative Service?

The *Motion for Alternative Service* requires detailed information that you should gather ahead of time before you write the motion. You can use the checklist on the next page as a guide to help you prepare the information needed for the motion.

NOTICE: This document is an optional court resource for people who do not have an attorney. You are free to research legal information and create your own motion if you do not want to use the court's resources. This document is also not intended to be legal advice or take the place of an attorney. If you need the assistance finding an attorney, our court staff can give you information on legal service organizations that may be able to help you.

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Motion for Alternative Service Checklist

Motion for Alternative Service Checklist <i>Use this checklist to help you prepare the information you will need to complete the Motion for Alternative Service.</i>	YES	NO
PART I: Attempts to Locate the Party	☐	☐
Have you made a good faith effort to find the other parties? Examples of ways you can find someone is by checking with their family, friends, or employers, asking the post office, and searching public records or the internet.	☐	☐
PART II: Attempts to Serve the Other Party	☐	☐
Are you able to share detailed information about each attempt that was made to serve the other party in your document? Examples of information you should have include the dates, times, and locations of each service attempt.	☐	☐
PART III: Service Alternatives	☐	☐
Are you prepared to propose alternative ways the other parties in your case can be served? - Examples of different ways you may be able to serve the other parties include: - Certified mail - Attaching the document to the front door of the other party's residence - Advertising with the local newspaper	☐	☐
PART IV: Complete the Affidavit of Good Faith	☐	☐
Have you completed the "Affidavit of Good Faith" in your <i>Motion for Alternative Service</i> ? The Affidavit of Good Faith is included in the <i>Motion for Alternative Service</i> form. It is a required document that must be completed.	☐	☐

If you have checked "YES" to all four of these questions, you may file a Motion for Alternative Service with the Civil Filing Center in Room 296 City Hall.

This informational guide is intended for non-attorneys only